

#	Case Name	Tentative
3	24-01420130 <i>Carr vs. Siefkin</i>	Motion to Compel Deposition (Oral or Written) The motion of plaintiff Natalie Carr for an order compelling non-party witness Trisha Monninger to appear for questioning and produce documents as specified in the deposition notice served on the defendant on September 15, 2025 is DENIED. Although no opposition to the motion has been filed, the motion presents two procedural issues that may prevent the Court from granting it. First, as recognized by the plaintiff in the moving papers, a motion to compel the deposition of a non-party witness must be personally served on that non-party witness per CRC 3.1346. (“A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.”) Plaintiff represents in the motion that she was serving the non-party witness with the moving papers by mail and email and would also personally serve her with them as provided in Rule 3.1346. She states that she intended to file a proof of service showing personal service of the moving papers on witness after such service was made, but the Court’s file does not show that plaintiff filed the proof of service. Second, trial in this matter is scheduled for August 17, 2026, which is less than 30 days after the hearing date of the motion and, under Code Civ. Proc. § 2024.020(a), “any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Thus, the instant motion is being heard after the discovery cut-off date, and the Court denied plaintiff’s ex parte application to advance the hearing to a date before the discovery cut-off date. (See minute order of March 3, 2026, corrected nunc pro tunc by second minute order of March 3, 2026, ROAs 77 and 80.)
4	23-01327019 <i>Chavez vs. York Enterprises South, Inc.</i>	Motion for Attorney Fees Plaintiffs’ Motion for Attorney Fees is GRANTED in the amount of \$19,596.60. Plaintiffs seek an award of \$23,789.40, comprised of \$13,976.00 in fees, \$5,620.60 in costs, and a lodestar multiplier of 1.30 in the amount of \$4,192.80. There is no dispute Plaintiffs are entitled to fees and costs, but Defendants contend the fees are excessive. Defendants suggest \$5,444.75 would be appropriate.